CITY OF PISMO BEACH
FULL TEXT OF MEASURE E-26

ORDINANCE NO. O-2026-XXX

AN ORDINANCE OF THE PEOPLE OF THE CITY OF PISMO BEACH, CALIFORNIA ADDING SECTION 2.04.005 OF THE PISMO BEACH MUNICIPAL CODE TO CHANGE THE TERM OF THE ELECTIVE OFFICE OF MAYOR TO FOUR YEARS

WHEREAS, the City Council of the City of Pismo Beach is currently composed of a directly-elected Mayor who serves a two-year term and four Council Members who serve four-year terms; and

WHEREAS, under current law, in each even-numbered year the Mayor and two Council Members come up for election; and

WHEREAS, the People of the City of Pismo Beach desire that beginning with the Mayor elected at the 2028 general municipal election, the term of office of the Mayor be four years.

NOW, THEREFORE, the People of the City of Pismo Beach, California do ordain as follows:

SECTION 1.

Section 2.04.005 of the Pismo Beach Municipal Code is hereby added to read as follows:

> **2.04.005 Membership.**
>
> The City Council shall be composed of a directly-elected Mayor and four at-large Council Members.
>
> The term of office for Council Members shall be four years. Commencing with the term of office elected at the November 7, 2028 election, the term of office for the Mayor shall be four years.

SECTION 2.

The intent of this ordinance is to convert the elective office of Mayor to a four-year term, beginning with the term of office elected at the November 7, 2028 election. Under existing law, the four other members of the City Council are elected to staggered four-year terms, so that in each even-numbered year, two of the seats come up for election and in the next even-numbered year the other two seats come up for election. Nothing in this ordinance is intended to in any way change the terms of office of the four Council Members or to change the election schedules for Council Member seats, and all language in this ordinance regarding the office of Council Member is declaratory of existing law. It is the intent of this ordinance that the person elected Mayor at the election held on November 3, 2026 shall hold office for two years pursuant to the law in effect prior to the adoption of this ordinance.

SECTION 3.

This ordinance shall not be interpreted in any manner to conflict with controlling provisions of state or federal law, including, without limitation, the Constitution of the State of California. If any section, subsection, or clause of this ordinance shall be deemed to be unconstitutional or otherwise invalid, the validity of the remaining sections, subsections and clauses shall not be affected thereby.

SECTION 4.

This ordinance was submitted to the People at the November 3, 2026 General Municipal Election. Pursuant to Elections Code Section 9217, if the measure proposing this ordinance is adopted at that election by a majority of the qualified voters voting on that measure, this ordinance shall be considered as adopted upon the date that the vote is declared by the City Council, and shall go into effect ten days thereafter.

SECTION 5.

There is no possibility that the adoption of this ordinance will have a significant impact on the environment, and therefore, the adoption of this ordinance is exempt from the California Environmental Quality Act ("CEQA"), pursuant to Section 15061(b)(3) of the CEQA Guidelines (Title 14, Chapter 3 of the California Code of Regulations).

SECTION 6.

If passed by the voters, the City Clerk shall certify to the passage and adoption of this Ordinance, shall enter the same in the book of original ordinances of the City and shall make a minute of the passage and adoption thereof in the records of the meeting at which the same is passed and adopted.

Before the expiration of fifteen (15) days after the passage of this Ordinance, the City Clerk shall cause the same to be posted in three public places within the City of Pismo Beach, to wit: 1) City Hall, 760 Mattie Road, Pismo Beach, 2) U.S. Post Office, Shell Beach Road, Pismo Beach, 3) U.S. Post Office, Crest Drive, Pismo Beach.

PASSED AND ADOPTED by the People of the City of Pismo Beach this 3rd day of November 2026.

IMPARTIAL ANALYSIS OF MEASURE E-26

This measure is an ordinance that changes the term of office for the Mayor of Pismo Beach from two years to four years.

Currently, the Pismo Beach City Council is composed of a Mayor, who is directly elected to a two-year term, and four Council Members, who are elected at-large to four-year terms. The terms of the council members are staggered, so that every two years the City's voters elect the mayor and two council members.

The proposed ordinance would amend the Municipal Code to make the mayoral term of office four years, beginning with the mayoral term elected at the November 7, 2028 election. The Mayor elected at the November 3, 2026 election would serve a two year term as provided under existing law. The terms of office and elections schedule for the four Council Members would not change.

This measure was placed on the ballot by the Pismo Beach City Council.

A "yes" vote is a vote to approve the ordinance that changes the mayoral term of office from two years to four years beginning with at the November 7, 2028 election.

A "no" vote is a vote to keep the existing two-year mayoral term of office.

s/ Dean J. Pucci, City Attorney

ARGUMENT IN FAVOR OF MEASURE E-26

Vote YES on Measure E-26 Four-Year Mayoral Terms Measure

The voters of Pismo Beach have chosen to make the Mayor a separately elected office with a two-year term. By law, the Mayor holds the same authority as the City Council Members, who serve four-year terms. Aligning the terms for all five elected officials gives the Mayor the opportunity to focus on achieving meaningful results by dedicating more time and energy to long-term objectives.

Implementing a unified term structure eliminates the distraction of constant campaigning. This allows the Mayor to concentrate on governing rather than preparing for frequent elections. Additionally, having fewer elections strengthens the City's defenses against undue influence from special interest groups, as it reduces opportunities for external pressures to impact decision-making.

By shifting emphasis from campaigning to governing, the Mayor can collaborate strategically with the City Council and staff on long-term planning. This approach avoids "quick fixes" and instead promotes the development of comprehensive solutions. With longer terms, voters are able to assess the Mayor's effectiveness based on actual results rather than campaign promises.

For these reasons, it is both right and appropriate that the Mayor's term of office be consistent with the terms of all other City Council Members.

s/ Ed Waage, Mayor

s/ Mary Ann Reiss, Mayor Pro Tem

ARGUMENT AGAINST MEASURE E-26

On March 2, 2004, the electors of the City of Pismo Beach decided to elect a Mayor.

On that same date, March 2, 2004, the electors of the City of Pismo Beach decided that the term of the Mayor shall be two (2) years commencing with the election in 2004 by passing Measure D-04.

The electorate passed Measure D-04 providing that the term of the Mayor shall be two (2) years by 69.8 percent (%).

Clearly, the people of Pismo Beach were staunchly in favor of the Mayor's term being two (2) years.

Neither the City's citizens nor its voters have requested or petitioned the Pismo Beach City Council to change the Mayor's term of office from two (2) years to four (4) years.

There is no logical reason to change the Mayor's term of office to four (4) years at this time.

s/ Stacy Inman, Pismo Beach City Council Member

REBUTTAL TO THE ARGUMENT IN FAVOR OF MEASURE E-26

Vote NO on Measure E-26

If the Voters wanted the term of the Mayor to be four (4) years – you would have petitioned for it. No One from the public has sought to change the Mayor's term to two (2) years.

The Argument in favor of this measure states that having a 4 year mayoral term will align the terms of all Council Members including the Mayor. This is Not True.

Pismo Beach's City Council positions are set up in alternating 2-year periods, and therefore, they are never mathematically aligned. Rather, they are intentionally staggered, so that 2 members of the Council are up for election every 2 years.

And every 2 years, the Mayor is up for election.

Since 2004, when the electors decided that Pismo Beach's Mayor should have a four (4) year term, there has been great stability in the position of Mayor. There have been three Mayors elected since 2004: Mary Ann Reiss (3 terms), Shelly Higginbotham (3 terms) and Ed Waage (5 terms).

Why Change Now?

The current Mayor and a past Mayor are seeking this change, not the people of Pismo Beach.

Let's Keep what the Voters Want!

Vote NO on Measure E-26

s/ Stacy Inman, Pismo Beach City Council Member

THERE WAS NO REBUTTAL TO THE ARGUMENT AGAINST MEASURE E-26 FILED